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An Act relating to voter registration; amending 26 O.S. 2021, Section 3-129, which relates to publication of election information; modifying information that may be published; making language gender neutral; requiring the Secretary of the State Election Board to annually issue report with certain statistics; amending 26 O.S. 2021, Sections 4-112, as amended by Section 18, Chapter 282, O.S.L. 2022, and 4-120.6 (26 O.S. Supp. 2025, Section 4-112), which relate to applications and cancellation; requiring certain information to be included on voter registration applications; requiring certain applications to be deemed requests for cancellation; requiring the Secretary to send certain notices; updating statutory language; and declaring an emergency.

By: Bergstrom and Jett

SECTION 1. AMENDATORY 26 O.S. 2021, Section 3-129, is amended to read as follows:

Section 3-129. A. The Secretary of the State Election Board is authorized to publish the Roster of State and County ~~Officials~~ Officers, along with election results and statistics, lists of candidates filing for office, voter registration statistics, and

1 such other publications as ~~he~~ the Secretary deems necessary for the
2 discharge of his or her duties.

3 B. The Secretary of the State Election Board shall cause a
4 report to be issued electronically at least once per calendar year
5 with the total number of:

6 1. Notices sent to the chief election official of another state
7 providing information about a voter in that state who is registered
8 to vote in this state;

9 2. Notices sent to each state;

10 3. Notices received from the chief election official of another
11 state indicating that a voter from this state registered to vote in
12 that state;

13 4. Notices received from each state; and

14 5. Voter registrations canceled in this state due to a
15 definitive match of the information provided in such notices with
16 registered voters in another state.

17 SECTION 2. AMENDATORY 26 O.S. 2021, Section 4-112, as
18 amended by Section 18, Chapter 282, O.S.L. 2022 (26 O.S. Supp. 2025,
19 Section 4-112), is amended to read as follows:

20 Section 4-112. A. The Secretary of the State Election Board
21 shall devise and distribute a registration application form to be
22 used for registering voters. Such registration application shall
23 contain the following information:

1 1. The applicant's full name and date of birth, county and
2 place of residence, and mailing address pursuant to the provisions
3 of subsection G of this section;

4 2. A space or section to designate a political party recognized
5 by the laws of ~~the State of Oklahoma~~ this state with which the
6 applicant chooses to be affiliated;

7 3. The Oklahoma driver license or identification card number if
8 the applicant has been issued a current and valid driver license or
9 identification card by Service Oklahoma, or if the applicant does
10 not have a valid Oklahoma driver license or identification card, the
11 last four digits of the voter's Social Security number;

12 4. An oath of the eligibility of the applicant to become a
13 registered voter; ~~and~~

14 5. A space or section for the applicant to indicate whether he
15 or she has previously been registered to vote in another county or
16 state and, if so, a space or section to indicate his or her prior
17 registration information including his or her name, residence
18 address and county, and political affiliation; and

19 ~~5-~~ 6. Such other information as may be deemed necessary by the
20 Secretary to identify such applicant and to ascertain his or her
21 eligibility.

22 B. A voter registration application shall be signed by the
23 applicant in writing. The applicant shall personally subscribe his
24 or her name to or make his or her mark on the application, and no

1 agent, representative, or employee of the applicant may sign or mark
2 on the applicant's behalf. The signature or mark ~~must~~ shall be the
3 original, handwritten signature, autograph, or mark of the
4 applicant. No facsimile, reproduction, typewritten, or other
5 substitute signature, autograph, or mark will be valid.
6 Notwithstanding any law to the contrary, the Secretary of the State
7 Election Board shall prescribe procedures to authorize any person
8 incapable of personally making a mark to complete a voter
9 registration application with assistance of an official of any voter
10 registration agency or licensed operator specified in Sections 4-
11 109.2 and 4-109.3 of this title. Provided, for applications
12 submitted electronically, in lieu of the signature requirements set
13 forth in this subsection, the applicant shall consent to the use of
14 his or her driver license or identification card signature as
15 provided in Section 4-109.4 of this title.

16 C. Persons who do not indicate a recognized political party or
17 political organization on their registration application shall be
18 designated as Independents.

19 D. Any person may apply in writing to the Secretary of the
20 State Election Board for permission to print, copy, or otherwise
21 prepare and distribute the registration applications designed by the
22 Secretary of the State Election Board. The Secretary may revoke any
23 such permission at any time.

24

1 E. All registration applications shall be distributed to the
2 public at no charge.

3 F. The Secretary also shall prescribe procedures to accept and
4 use the National Mail Voter Registration Form, or its successor, as
5 required by the National Voter Registration Act of 1993. Provided,
6 to be accepted as a valid voter registration application, the form
7 shall include the applicant's original, handwritten signature,
8 autograph, or mark as described in subsection B of this section.

9 G. Applicants for voter registration or for change of voter
10 registration in any way shall provide a residence address and, if
11 different from the residence address, a mailing address. A
12 residence address shall include the street address of the residence,
13 including a full house number, street name or number, apartment or
14 suite number, if applicable, and zip code. If a street address is
15 not available for the residence, applicants shall provide such
16 information as the Secretary of the State Election Board deems
17 necessary for voter registration purposes. A post office box may
18 not be given as a residence address. A mailing address, which shall
19 include the city and zip code, may be the actual emergency
20 notification or ~~911~~ 9-1-1 address on file in the local community, a
21 rural route and box number, a post office box number, or a street
22 address.

23 H. A full or partial Social Security number or driver license
24 number in a voter registration record or a voter registration

1 application shall not be considered a public record and shall be
2 kept confidential by the State Election Board and each county
3 election board.

4 I. By completing and submitting a signed voter registration
5 application, the application shall be deemed an applicant's request
6 for the cancellation of any prior voter registration in another
7 county or state pursuant to 52 U.S.C., Section 20507(a)(3)(A).

8 SECTION 3. AMENDATORY 26 O.S. 2021, Section 4-120.6, is
9 amended to read as follows:

10 Section 4-120.6. The secretary of each county election board
11 shall cancel the registration of all registered voters who have
12 registered in another county in ~~Oklahoma~~ this state, or in another
13 state, upon receipt of notice of same. For any registered voter who
14 indicated on his or her voter registration application that he or
15 she was previously registered to vote in another state, the
16 Secretary of the State Election Board shall cause a notice to be
17 sent to the chief election official of the state where the voter was
18 previously registered.

19 SECTION 4. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
24 February 17, 2026 - DO PASS AS AMENDED BY CS